

OD-8

ORDER SHEET
WPO/1075/2024
IN THE HIGH COURT AT CALCUTTA
Constitutional Writ Jurisdiction
ORIGINAL SIDE

BIPIN RUPARELIA
VS
STATE OF JHARKHAND & ORS.

BEFORE:
The Hon'ble JUSTICE AMRITA SINHA
Date: 7nd January, 2025.

Appearance:
Mr. Suddhasatva Banerjee, Adv.
Mr. Sourajit Dasgupta, Adv.
Mr. Victor Dutta, Adv.
...for Petitioner.

Ms. Debjani Sengupta, Adv.
Mr. Amitava Mitra, Adv.
Ms. Sonia Nandy, Adv.
...for Respondent no.3.

Mr. Rajiv Kumar Chowdhury, Adv.
Ms. Rinki Saha, Adv.
...for Respondent no.4.

1. None represents the respondent nos. 1 and 2.
2. An affidavit by the respondent no.3 affirmed by Branch Manager and Constituted Attorney of HDFC Bank Ltd. has been filed in Court.
3. It appears therefrom that in the records maintained by HDFC Bank, the account of the petitioner bearing no. 50200070064409 has a balance amount of Rs. 24,66,451.14 as on 2nd January, 2025 and lien is marked in respect of Rs. 13,91,226/-.
4. The subject bank account has been found to be involved in fraudulent transaction and the bank has frozen the subject account as per the directive issued by the respondent no.2. The details of the investigations are not made known to the Court.
5. Learned Advocate for the petitioner submits, upon instruction that, the details of the transaction are also not made known to the petitioner. The petitioner denies any transaction or activity related to fraud as alleged.

6. In view of the above, the bank is permitted to mark lien on the amount of Rs.15 lakh only for the time being and the rest amount may be permitted to be used by the petitioner for his regular business purpose. The bank shall permit the petitioner to operate the bank account within 48 hours from the date of communication of this order.
7. The petitioner is directed to co-operate with the investigation and produce all relevant documents as and when sought for by the investigating agency.
8. The writ petition stands disposed of.
9. Urgent photostat certified copy of this order, if applied for, be supplied to the parties upon compliance of all legal formalities.

(AMRITA SINHA, J.)